Republic of the Philippines

City of Davao

Office of the Sangguniang Panlungsod

17th City Council | 17th Regular Session | Series of 2015

PRESENT: Councilor Rene Elias C. Lopez (Temporary Presiding Officer), Councilor Nilo M. Abellera Jr., Councilor Victorio U. Advincula Jr., Councilor Bernard E. Al-ag, Councilor Al Ryan S. Alejandre, Councilor Leonardo R. Avila III, Councilor Joanne M. Bonguyan-Quilos, Councilor Danilo C. Dayanghirang, Councilor April Marie C. Dayap, Councilor Jimmy G. Dureza, Councilor Leah A. Librado-Yap, Councilor Diosdado Angelo A. Mahipus Sr., Councilor Bonifacio E. Militar, Councilor Myrna G. L'Dalodo-Ortiz, Councilor Antoinette G. Principe-Castrodes, Councilor Marissa P. Salvador-Abella, Councilor Halila Y. Sudagar, Councilor Mary Joselle D. Villafuerte, Councilor Rachel P. Zozobrado.
ON OFFICIAL BUSINESS: Councilor Ma. Belen S. Acosta (Palarong Pambansa, Tagum City), Councilor Karlo S. Bello (Manila).
ABSENT: Vice Mayor Paolo Z. Duterte (On Vacation Leave), Councilor Louie John J. Bonguyan (On Vacation Leave), Councilor January N. Duterte (On Sick Leave), Councilor Edgar R. Ibuyan Sr. (On Domestic Emergency Leave), Councilor Tomas J. Monteverde IV (On Sick Leave).

ORDINANCE NO. 0325-15
Series of 2015

AN ORDINANCE CLOSING OFF THE CITY OF DAVAO TO MINING OPERATIONS

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled that:

SECTION 1. TITLE.

This Ordinance shall be known as 'AN ORDINANCE CLOSING OFF THE CITY OF DAVAO TO MINING OPERATIONS';

SECTION 2. DECLARATION OF POLICY.

The City of Davao hereby declares as its policies, the following, to wit:

a) The right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature shall be protected and advanced by the City, consistent with the policy enshrined in Article II, Section 16 of the Constitution;

b) Under the provisions of the Local Government Code of 1991, in Section 458 (a) (1) (vi) and its Implementing Rules and Regulations, the Sangguniang Panlungsod has the power, the duty and function to protect the environment and impose appropriate penalties for such acts which endanger it;

c) The Local Government of Davao City, pursuant to Section 16 of the same Code, shall exercise the powers expressly granted, those necessarily implied therefrom, as well as, powers necessary, appropriate or incidental to its efficient and effective governance, and those which are essential to the promotion of the general welfare;

d) While mining has been identified as a highly-important economic program of the national government, the city recognizes the irreversibility of the destructive effects of mining on the earth's fragile ecosystem, especially to an island ecosystem such as Mindanao, and in worsening the magnitude of hunger and conflict as mining competes with the remaining available land, water and food resources;

e) The ravaging effects of extreme climatic events and other natural disasters which had visited the country with more frequency and worsening magnitude, demand that government policies and programs must integrate biodiversity protection in order to ensure that future generations will be able to enjoy a healthy and balanced ecology;

f) The Local Government of Davao City is mindful of the fact that the city is endowed with vast natural resources, of which the people are very protective of;

g) With the view of protecting the city's people and its rich biodiversity, the local government has enacted and passed legislations, notably among them Ordinance No. 03197-07, otherwise known as the 'Watershed Code of Davao City';

h) Pursuant to the Watershed Code, a closer view of the terrain analysis of the territorial jurisdiction of Davao City reveals that the city is comprised with areas which are already declared watershed areas, protected areas, prime agricultural areas and the areas inhabited by the people, such that mining in any form or stage poses a most detrimental impact on the ecological balance and the very lives of the people;

i) The Local Government of Davao City has taken upon itself the duty and responsibility to protect and preserve the environment for the generations to come under the context of 'inter-generational responsibility' enunciated by the Supreme Court in the case of Oposa vs. Factoran; and

j) Within the same context of 'inter-generational responsibility', it is hereby declared that no approval shall ever be issued to any mining project within the territorial jurisdiction of Davao City;

SECTION 3. PURPOSE.

This Ordinance is enacted in order to protect and conserve the city's rich biodiversity, under the principle that the environment should not be degraded in the name of economy and development, to ensure that future generations will still be able to enjoy a healthy and balanced ecology;

SECTION 4. DEFINITION OF TERMS.

As used in this Ordinance, the following terms shall mean as follows:

a) 'Minerals' refers to all naturally occurring inorganic substance in solid, gas, liquid, or any intermediate state, excluding energy materials such as coal, petroleum, natural gas, radioactive materials and geothermal energy;

b) 'Mining operation' means mining activities involving exploration, feasibility, development, utilization and processing;

c) 'Quarrying' means the process of extracting, removing and disposing quarry resources found on or underneath the surface of public or private lands;

d) 'Quarry resources' refers to any common rock or other mineral substances as the Director of Mines and Geosciences Bureau may declare to be quarry resources such as, but not limited to, andesite, basalt, conglomerate, coral sand, diatomaceous earth, diorite, decorative stones, gabbro, granite, limestone, marble, marl, red burning clays for potteries and bricks, rhyolite, rock phosphate, sandstone, serpentine, shale, tuff, volcanic cinders, and volcanic glass: Provided, that such quarry resources do not contain metals or metallic constituents and/or other valuable minerals in economically workable quantities: Provided, further, that non-metallic minerals such as kaolin, feldspar, bull quartz, quartz or silica, sand and pebbles, bentonite, talc, asbestos, barite, gypsum, bauxite, magnesite, dolomite, mica, precious and semi-precious stones, and other non-metallic minerals that may later be discovered and which the Director declares the same to be of economically workable quantities, shall not be classified under the category of quarry resources;

e) 'Biodiversity' refers to the variety of life formed and found on earth; comprises all living things and the genes they contain, the ecosystem they build and the way they live and interact together;

SECTION 5. NO APPROVAL OF MINING OPERATIONS.

No approval shall be granted or issued by the city through its Sangguniang Panlungsod to any person, natural or juridical, to undertake any and all forms of mining operation in any area within the territorial of Davao City, except rocks and mineral substances classified under the category of quarry resources.

Pursuant thereto, no permit shall be issued by the local government and/or any of its offices, allowing any entity, natural or juridical, to engage in any business involving, whether directly or indirectly, mining activities or operations of any kind or stage, within the territorial jurisdiction of Davao City.

SECTION 6. INFORMATION, EDUCATION AND ADVOCACY.

The City Government, in cooperation with the academe, civil society and the business community, shall implement a continuing information and education campaign to encourage awareness and vigilance among the citizenry on biodiversity protection. In particular, this information campaign shall be given to schools in order to educate the young citizens of the importance in protecting the environment. For this purpose, the City Environment and Natural resources (CENRO) shall take the lead in the campaigns;

SECTION 7. PENALTIES.

Any person found guilty of violating any provision of this Ordinance shall be punished with imprisonment of not exceeding one (1) year or a fine of not more than Five Thousand Pesos (Php 5,000.00) only or both at the discretion of the court, without prejudice to the filing of the appropriate administrative, civil or criminal action;

SECTION 8. ADMINISTRATIVE SANCTIONS.

Government officials and employees who fail to comply with and enforce the provisions of this Ordinance shall be charged administratively in accordance with existing laws, rules and regulations;

SECTION 9. REPEALING CLAUSE.

All Ordinance, Executive Orders, resolutions and regulations inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly;

SECTION 10. EFFECTIVITY.

This Ordinance shall be posted in all government offices, including barangay halls and shall also be published in full text once a week for three (3) consecutive weeks in a newspaper of general circulation within the jurisdiction of Davao City. This Ordinance shall take effect fifteen (15) days from the date of the last publication thereof;

ENACTED, May 5, 2015, by a majority vote of all the Members of the Sanggunian Panlungsod present, there being a quorum.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

RENE ELIAS C. LOPEZ
City Councilor
Temporary Presiding Officer

ATTESTED:

ATTY. JESUS MELCHOR V. QUITAIN
City Administrator

APPROVED: _____, 2015
[LAPSED INTO LAW]
DEEMED APPROVED AFTER THE LAPSE OF TEN (10) DAYS PER SEC. 54 (b), R.A. 7160
RODRIGO R. DUTERTE
City Mayor